

24STCV29475 24STCV29475

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV29475 Hearing Date: July 31, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV29475

DELIA

MERCEDES CARDONA, et al. vs K3 HOLDINGS LLC, A DELAWARE LIMITED LIABILITY
COMPANY, et al.

July

31, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO

QUASH DEFENDANTS' MOTION TO QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO
FARMERS GROUP, INC. DEFENDANTS' MOTION TO QUASH DEFENDANTS' MOTION

TO QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO COLLIERS INTERNATIONAL
GREATER LOS ANGELES, INC. DEFENDANTS'
MOTION TO QUASH DEFENDANTS'

MOTION TO QUASH THIRD-PARTY BUSINESS RECORDS SUBPOENA TO MYNHD, INC. DEFENDANTS' MOTION TO
QUASH DEFENDANTS' MOTION TO QUASH
THIRD-PARTY BUSINESS RECORDS SUBPOENA TO WILSHIRE ESCROW COMPANY.

RULING:

The Court continues the four
Motions to September 4, 2026, at 8:30 a.m., for meeting and conferring towards
more narrowing, or resolution, of the remaining issues.

Supplemental documents, including
any stipulations to narrowed subpoena language, may be served and filed at
least five days before the continued hearing date.

Defendant to give notice.

I.

BACKGROUND

On November 8, 2024, DELIA
MERCEDES CARDONA et al. (Plaintiffs) filed a Complaint against K3 HOLDINGS LLC et
al. (Defendants), alleging the following causes of action:

1.

BREACH OF THE WARRANTY OF HABITABILITY;

2.

NEGLIGENCE;

3.

BREACH OF QUIET ENJOYMENT;

4.

NUISANCE;

5.

BUSINESS AND PROFESSIONS CODE, SECTION 17200;

6.

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS;

7.

VIOLATION OF LOS ANGELES MUNICIPAL CODE SECTION 45.30 ET SEQ. (TENANT ANTIHARASSMENT ORDINANCE);

8.

VIOLATION OF CIVIL CODE SECTION 1942.4; and

9.

VIOLATION OF CIVIL CODE SECTION 1942.5.

Plaintiffs allege that they

have been tenants residing at 454 Catalina Street, Los Angeles, where Defendants have held ownership interests or have been managers. Plaintiffs further allege that Defendants are liable for intentionally deferring essential maintenance and failing to address needed repairs, including persistent leaks, plumbing problems, vermin infestations, and defective walls, ceilings, and floors.

On June 10, 2026, Defendants filed four Motions to Quash Third-Party Records Subpoenas, including requests for monetary sanctions.

Plaintiffs advocate denying, or substantially narrowing the subpoenas as proposed in the Oppositions. They also request monetary sanctions.

II.

LEGAL STANDARD

“‘[U]pon motion reasonably made by the party,’ judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583 [seven days’ notice of motion constituted reasonable delay].) A court may quash a subpoena

entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1. Cf. *Calcor Space Facility v. Superior Court* (1997) 53 Cal.App.4th 216, 223 [finding burden as to a subpoena, due to grossly excessive requests.])

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re *Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Defendants seek Orders

quashing four subpoenas, as overbroad, lacking reasonable particularity, seeking irrelevant information, invading privacy rights, seeking privileged documents, imposing undue burden on non-parties, and needing more narrow tailoring. In the Replies, Defendants contend that Plaintiffs belatedly acknowledge overbreadth by withdrawing categories of documents, and Defendants propose satisfactory wording for even more narrowed subpoenas.

Plaintiffs emphasize that

they have proposed narrowed subpoena language such that the Motions are moot. They also assert that they seek relevant information regarding Defendants' knowledge about the subject property, as related to theories of habitability, negligence, and punitive damages. Plaintiffs contend that Defendants lack the capacity to assert privacy or other objections as to records custodians serving no objection. Plaintiffs expressly do not seek communications protected by the attorney-client privilege or the work-product doctrine.

“The corporate right to privacy is a lesser right than that held by human beings and is not considered a fundamental right.” (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 756 [evaluating whether the corporate information appears reasonably calculated to lead to the discovery of admissible evidence, balanced against the corporate right, with doubts about relevance generally resolved in favor of allowing the discovery].) A privacy objection is not ripe for adjudication before a court where there is no factual basis for ruling, such as respondents’ identifying the documents withheld in a privacy privilege log or elsewhere. (Connecticut Indem. Co. v. Superior Court (2000) 23 Cal.4th 807, 818.)

Potentially affected third parties must be notified (e.g., by letter or e-mail) and given an opportunity to either consent or object, before discovery responses revealing their private information, and parties have an obligation to object and cannot waive such rights of third parties. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554, 561-562; Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 374-375; DOE 2 v. Superior Court (2005) 132 Cal.App.4th 1504, 1521.) A court failed to provide notice to the non-parties about opportunities to object by a reasonable means. (See Life Technologies Corp. v. Superior Court (2011) 197 Cal.App.4th 640, 655-656, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

The Legislature enacted Insurance Code section 791 to address concerns about an enormous amount of material maintained in insurance company files, and private records of insureds should only be released upon a supportive showing. (Griffith v. State Farm Mut. Auto. Ins. Co. (1991) 230 Cal.App.3d 59, 65-68.)

“[I]f documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection ‘shall’ be supplied.” (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.)

“A determination of

whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v.

Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294.)

Here, the Court observes

that both sides have proposed substantially narrowed subpoenas, such that it appears that further meeting and conferring realistically could resolve the matters.

IV.

CONCLUSION

The Court continues the Motions, for meeting and conferring, considering the Oppositions and Replies proposing greatly narrowed subpoenas.